

--SUMMARY--

Decision No. 2237/19

28-Feb-2020

R.Nairn

- Negligence
- Transfer of costs

A delivery driver was injured when he slipped on ice or snow when he was making a delivery to a client in a plaza. The employer of the driver appealed a decision of the Appeals Resolution Officer denying transfer of costs of the claim to the property manager of the plaza or the company responsible for maintenance and snow removal at the plaza.

The accident occurred at 6:40 am on December 19, 2014, in the rear shipping area of the plaza. The plaza was large, containing more than 90 tenants. The plaza was the largest client of the maintenance company. The maintenance company had a worker dedicated to the plaza, and kept a significant amount of equipment at the site. On the day before the accident, one centimetre of snow had fallen. This was not sufficient to require snow cleaning but, none the less, the maintenance company salted the site. No snow fell on the day of the accident.

The employer of the worker did not establish that the worker's injury was due to negligence of the property manager or the maintenance company. The property manager contracted the snow clearing and salting services with the maintenance company. The maintenance company was diligent in snow clearing and salting work for the property manager, its largest client. It is unrealistic to expect a plaza of this type to be totally ice free during the winter months with fluctuating temperature and weather.

The appeal was dismissed.

11 Pages

References: Act Citation

- WSIA

Other Case Reference

- [w1320s]

Style of Cause:

Neutral Citation: 2020 ONWSIAT 482



WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 2237/19

BEFORE:

R. Nairn: Vice-Chair

HEARING:

December 6, 2019 at Toronto
Written

DATE OF DECISION:

February 28, 2020

NEUTRAL CITATION:

2020 ONWSIAT 482

DECISION(S) UNDER APPEAL: WSIB Appeals Resolution Officer (ARO) decision dated
February 28, 2018

APPEARANCES:**For the worker:**

Not participating

For the employer G:

Mr. S. Lam, Paralegal

For the respondent S:

Mr. J. Waltman, Lawyer

For the respondent N:

Did not participate

Interpreter:

Not applicable

Workplace Safety and Insurance
Appeals Tribunal

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Toronto ON M5G 2P2

Tribunal d'appel de la sécurité professionnelle
et de l'assurance contre les accidents du travail

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REASONS

(i) Introduction

[1] The following background information is provided in order to place this appeal into its proper context:

- At the time of the accident under consideration here, the worker was employed as a sales representative with G.
- G is a Schedule 1 employer and is in the business of wholesaling food. On December 19, 2014, the worker was making a delivery to a client located in a plaza. The plaza contained over 90 tenants and the customer, being visited by the worker, was located in Unit 20. Unit 21 was a carpet store.
- On December 19, 2014 at approximately 6:40 a.m., the worker had parked his tractor trailer in the rear shipping area near units 20 and 21. He was walking along the driver's side of his tractor trailer towards the rear of the trailer when he slipped on ice/snow, fracturing his left ankle.
- S performs property management services at the plaza and N is in the business of lawn maintenance and snow removal. Both S and N are Schedule 1 employers.
- The Board recognized the worker's injuries as compensable and he received various periods of Loss of Earnings ("LOE") benefits. The Board also recognized that he had been left with a permanent impairment of his left ankle and he was granted a 4% Non-Economic Loss ("NEL") award for his compensable injuries diagnosed as "post-traumatic osteoarthritis ankle joint, tibial plafond fracture with ORIF".
- In 2015, G asked that the Board transfer the costs of this worker's claim to the accounts of S and/or N on the grounds that the worker's slip and fall was caused by their negligence in failing to properly maintain the parking lot.
- After receiving submissions from the parties, a Board Transfer of Cost Adjuster issued a decision dated March 8, 2017 denying the request by G to transfer the costs of this claim. In reaching that conclusion, the Transfer of Cost Adjuster indicated in part:

Analysis:

Based on the information currently on file, it is apparent that [the worker] was on the premises where N provided snow removal services. N was responsible for the condition of the premises and was required to take such care as was reasonable to see that all persons entering the premises were reasonably safe.

The presence of ice in Ontario is a common occurrence in the month of December. As such, it is not reasonable to expect a completely clear walking surface. N was not required to keep the premises absolutely free of ice. Rather, the standard of care required was for N to take reasonable steps to keep the premises safe in the circumstances.

The weather records from Environment Canada indicate that there were thaw-freeze conditions on site at the time of the incident. The submissions provided by N in combination with their service records and the weather reports demonstrate that N fulfilled their contractual obligations. In addition, at the time of the incident, N was spot salting the premises. N also cleared the drain of the carpet debris as soon as they were

made aware of the incident. There is no evidence to suggest that N failed to take reasonable steps to keep the premises free of ice and debris.

Photographic evidence provided indicates that [the carpet company's] debris was stored in a reasonable manner, providing N with full access to the area where the incident occurred. There is no evidence to suggest that [the carpet company's] carpet debris hindered N's ability to perform their snow removal duties.

S is not negligent in this matter as S met their required duty of care by contracting N to provide snow removal services to the premises where the incident occurred. There is no evidence of prior complaints regarding the maintenance of the premises, and N's service records support that N had been performing their responsibilities as set out in the contract.

Decision:

For the reasons outlined above, there will not be a cost transfer.

- G did not agree with the conclusions of the Transfer of Cost Adjuster and asked that the matter be reconsidered.
- In a decision dated April 4, 2017, the Transfer of Cost Adjuster denied the reconsideration request noting "I have reviewed this file subsequent to your correspondence and as no new information has been provided, I am unable to alter my decision".
- G continued to disagree with the conclusions of the Transfer of Cost Adjuster and the matter was eventually forwarded to an Appeals Resolution Officer ("ARO"). In a decision dated February 28, 2018, the ARO denied the appeal by G concluding that "N and S did exercise a reasonable standard of care in maintaining the premises per the records and evidence provided". In reaching that conclusion, the ARO indicated in part:

As provided for under section 84 of the WSIA and under policy 14-05-01, N and/or S are subject to a transfer of costs if the decision-maker is satisfied that the accident giving rise to [the worker's] injury was caused by the negligence of either party. There must be evidence to show, on the balance of probabilities that the alleged party or parties were negligent in that they did not fulfill their duty of reasonable care in the circumstances. I find it has not been demonstrated, on the balance of probabilities that N and/or S breached their duty of care in treating the ice and clearing the snow from the premise as evidence in the timesheets and proof provided. N's worker was present at the premise and salted specifically before the accident. I find N provided evidence to prove reasonable care had been taken to keep the premise reasonably clear of snow and ice despite ice having accumulated on the pavement. It is unrealistic that the premise be maintained free of snow and ice continuously. As I mentioned earlier, the standard of duty of care is one of reasonableness. I also find that S did provide a duty of care by ensuring that they contracted an agreement that was reasonable for snow removal and maintenance. Also, there is no evidence to substantiate S's negligence in maintaining the premise.

As provided for under section 84 of the WSIA and under Policy 14-05-01, I may allow a transfer of costs if I am "satisfied that the accident giving rise to [the worker's] injury was caused by the negligence of N and/or S or any of its workers. There must be evidence to show, on the balance of probabilities that the aforementioned parties or its workers were negligent in that they did not fulfil their duty of reasonable care in the circumstances. Therefore, I find no basis for transferring 100 percent of the costs of [the worker's] accident from the record of G to N and/or S.

(ii) Issue on appeal

- [2] The issue to be determined in this case is whether the costs of this worker's claim ought to be transferred from G (the accident employer) to N and/or S.

(iii) The submissions of G

- [3] G agreed to have this appeal considered by means of written submissions. Mr. Lam has provided submissions dated April 18, 2019 which have been reviewed and are included in Addendum #5. In those submissions, Mr. Lam concluded:

Conclusion

We ask for reconsideration based on the following premise:

1. Responses from S and N is to blame each other. They admitted knowing about the damaged retaining water constantly leaking ground water prone to freezing. [The carpet company] is known to leave debris that blocked the drainage. Yet, failed to discipline the tenant or ensure the safety of tenants and guests by clearing the regular hazards in a timely manner.
2. Problem tenant [the carpet company]. S and N admitted they knew [the carpet company] leaves debris blocking the drainage. There is no possibility G would have been aware of the possible hazards parking his vehicle near [the carpet company].
3. Victim blaming. Responses from S and N is predominately blame each other, rather than G. Our client should not be held accountable for injuries beyond their control. S and N has a duty of care to ensure the safety of the premises.
4. Questionable timeline of service. N time logs indicated they were surprisingly on the premises a full 90 minutes prior to the arrival of the G driver. The weather was sunny, air and ground (except accident scene) was dry of snow with minimal ice, but temperature was cool. There is no reason to arrive earlier than normal or required this much time servicing the front of the building. Prior Time Logs averaged 60-150 minutes of servicing the **entire property**, not 90 minutes for only the front.
5. Extended Servicing. Understandably, N had to maintain high traffic common areas before expanding across the premises. The service time in the accident area substantially increased 300% to 4.5 hours on the day of accident. Reiterating this is unusual considering the weather was clear of snow or rain

Therefore, we ask for reconsideration.

G employed the injured individual, visiting the premises managed by S, on the property maintained by N. There is an expectation to ensure the safety of tenants and guests while on the premises. Conflicting statements from S and N about responsibilities, timelines, servicing details and lighting on the day of the accident. The evidence supports our conclusion, G should not be held accountable for circumstances beyond the control of their driver. All costs of the claim should respectfully be transferred from G to the parties responsible for maintaining [the plaza].

(iv) The submissions of S

- [4] In correspondence dated April 4, 2019, Mr. Waltman, on behalf of S, agreed to have this appeal considered by means of written submissions. Mr. Waltman also indicated that for the purposes of this appeal he was intent to rely upon written submissions (dated April 1, 2016) which had previously been provided to the Transfer of Costs Adjuster. Those submissions, which

I have reviewed, are included in Addendum #2. In those submissions, the representative of S noted that G bore the burden of demonstrating, on a balance of probabilities, that another third party was negligent and that such negligence contributed to the accident in question. In S's opinion, G had not satisfied that burden of proof. In addition to disputing various allegations of negligence made against it, the representative indicated that "First and foremost, it is S's submission that it satisfied its duty of care by ensuring that there was a contract in place with an experienced contractor (namely N) to provide salting, snow removal and snow re-stacking services at the [plaza]". The submissions concluded:

SUMMARY:

In summation, S submits that neither the Accident Employer nor N has proved on a balance of probabilities that S was itself negligent in respect of the accident in question.

Having ensured by way of the N Agreement that an experienced specialized property maintenance company (N) would perform the salting of its parking lot and shipping areas, it cannot be said that S failed to take reasonable steps to discharge any duty of care it may have had.

(v) The submissions of N

[5] In correspondence dated March 8, 2019 (contained in Addendum #4) a Tribunal Senior Legal Worker confirmed that N did not wish to participate in this appeal.

[6] On October 20, 2015, in written submissions that had been provided to the Transfer of Cost Adjuster, the manager of N indicated in part:

(...)During the summer months, we are busy with construction work (landscaping and property maintenance) and during the winter months, we only do commercial snow plowing and ice maintenance when it snows. At present, we have a total of 10 winter contracts that vary in size which includes 20 different sites. We have a total of 5 trucks with ploughs. In addition, two of our employees own their own trucks with ploughs. All 5 trucks have salters on the back of them. Our largest client [the plaza]. We have been maintaining this site ever since we started the company, this past season, I have one claim involving slip and fall incidents at this property. Prior to these, I had no complaints and no claims about our work on this premises. Actually, we did receive a complaint about over salting from this past winter season with respect to the parking lot and sidewalks areas. Our services for this site is plowing the snow and salting the site. So we service the site when it snows on the day. On days that there is no snow we do not service the site. This recent fall occurred at the back of the building in the shipping area on December 19, 2014. It was near the back of unit 20 in the complex. Unit 20 is a carpet vendor. This day on December 19, 2014 there was no snow that day. I was aware of the fall immediately after it happened. My worker called me as he was on the site that day. Someone driving by on the property had alerted him to the slip and falls at the back of the property and asked him to go to the back area. B told me that a drain was blocked with a piece of carpet and it led to an accumulation of water that had become frozen. B had cleaned the drain after and had put additional salt down. B also commented that there had been some residual salt in the area from before. B is dedicated to this property. He is there usually daily. During the winter, he salts all the walkways and changes garbage cans in front of site. Garbage and litter cleaning is not required under our maintenance contract for the winter months. During the summer months, B picks up litter everywhere on the property. This back area (near unit 20) is a problem area for us on the property. We have complained numerous times to the Property management about the tenant in unit 20 before. We always find the area at the back of their unit to be cluttered with debris. It makes it difficult for us to clear and salt with all of the mess. It is always messy. Despite our complaint to the property management, this area never got better. We are

responsible to salt and clear all area on the property - including the parking lot, walkways, and the back shipping areas. (...)

On December 13, we had attended the site for spot salting. There was no snow cleaning required. Our logs show that our next maintenance was on December 18, which shows one centimeter of snow. B had salted the site from 4am-7am that morning (the walkways area). I had also attended the site on the 1 am from 2am-6:30am and salted the parking lot areas. I can tell by the amount of time that I have noted - that I would have done some additional work to help B out. (Either provided him with extra salt or fuel for the onsite equipment). I would have salted the back area with the truck salter. B only spot salts the back area if needed. There are couple of places that puddle and B monitors these and spot salts when necessary. The next morning (the 19th - the date of the incident), B had done some spot salting from 5am-9.30am (mostly walkways and puddles). There was no snow that day and no major weather events. B usually attends the property at 5am daily and completes a walk around first thing, checking all of the walkway areas. If there is no snow, he usually change the garbages first, completes whatever winter maintenance needed, and then drives around the site to re-check before going home. I am told that the fall occurred at 6.40am. B told me that he doesn't recall what time he was alerted to the man's fall, but when he attended the back shipping area, the man already been taken away by ambulance. I would like to also comment about a hole in the back retaining wall near the fall area. Last year or year before, there was a large fire on the neighbouring property - a bed factory. The hole in the wall appeared sometime after that fire. We have complained numerous times to the property management about the areas. We noticed that there is a lot more run off from the neighbouring property. The water runs into the drain near where the man fell. I know that B is always monitoring that area for freezing. I use the Weather Network's online information to monitor the weather. I keep two sets of logs, truck logs and walkway maintenance. I keep a bobcat, 2 snow blowers, a number of shovels, a backpack blower, brooms, one or two salt spreader with 1-2 tonnes of salt on site. We store the equipment in a unit provided by the landlord. There are over 100 industrial tenants at the site - it is a very large site. I am sending picture and logs with this letter. I have read the above information and it is true and accurate to the best of my knowledge.

(vi) Analysis

[7] Since this claim has an accident date in 2014 the applicable legislation is the *Workplace Safety and Insurance Act, 1997* (the “WSIA”).

[8] Section 28(1) of the WSIA provides:

28 (1) A worker employed by a Schedule 1 employer, the worker’s survivors and a Schedule 1 employer are not entitled to commence an action against the following persons in respect of the worker’s injury or disease:

1. Any Schedule 1 employer.
2. A director, executive officer or worker employed by any Schedule 1 employer.

[9] Section 84 of the WSIA also provides:

84 In a case where subsection 28 (1) applies and the Board is satisfied that the accident giving rise to the worker’s injury was caused by the negligence of some other employer in Schedule 1 or that other employer’s workers, the Board may direct that the benefits, or a proportion of them, in that case be charged against the class or group to which the other employer belongs and to the accident cost record of the other employer. 1997, c. 16, Sched. A, s. 84.

[10]

Pursuant to section 126 of the WSIA, the Tribunal is required to apply applicable Board policy. In this case, the Board has notified the Tribunal that one of the policies that apply to this appeal is *Operational Policy Manual (OPM) Document No. 14-05-01* entitled “Transfer of Costs”. This policy, which references section 84 of the WSIA, indicates in part:

Policy

If negligence is determined and claims costs have already been charged to the accident employer, all or part of these costs are transferred from the accident employer's cost record to the negligent employer's cost record.

Guidelines

Right of action/recovery

In the case of an accident or disease to a Schedule 1 worker, the injured worker does not have a right of action/recovery against another Schedule 1 worker or employer.

(...)

Investigating possible negligence

Definition

In common law, negligence is defined as

- failing to do something which a reasonable and prudent person would do,
- or
- doing something which a reasonable and prudent person would not do.

On a case by case basis, the WSIB applies common law principles to determine if another employer is negligent in a work-related accident,

(...)

Proof of negligence

If the evidence indicates that it is more likely than not that the other Schedule 1 employer was negligent, the WSIB determines the degree of negligence. As a result, the WSIB may transfer all or part of the claim costs to the negligent employer. The details of the transferred costs appear on both the accident and negligent employer's accident cost statements.

(...)

Application date

This policy applies to all decisions made on or after January 1, 1996.

[11]

As indicated above, section 84 of the WSIA provides that if an accident giving rise to an injury to a worker of a Schedule 1 employer was caused by the negligence of another Schedule 1 employer or by that other employer's workers, the Board may direct that all or part of the accident claim costs be charged to the account of that negligent employer and that employer's rate group. OPM Document No. 14-05-01 provides that in common law, “negligence” is defined as:

failing to do something which a reasonable and prudent person would do
or
doing something which a reasonable and prudent person would not do.

[12]

Decision No. 2972/18 for example, notes that the WSIB applies common law principles to determine if another employer is negligent in a work-related accident and reviews the following law that addresses how these principles are applied:

- In *Decision No. 1987/13*, a Tribunal Panel expressed the opinion that:
 The test used when considering whether some or all costs ought to be transferred is whether one employer's negligence caused or contributed to the workplace accident at issue. The onus is on the appellant employer to prove, on the balance of probabilities, the negligence of the second employer (see *Decision Nos. 1600/07* and *432/00*). Further, it is the common law of negligence that applies to this analysis.
- Tribunal *Decision No. 129/11* provides the following definition of "negligence":
 ...One useful definition of "negligence" is found in the Canadian Law Dictionary, by John Yogis, Q.C., Professor of Law at Dalhousie University. The Canadian Law Dictionary defines negligence as follows:
 Negligence is the omitting to do something that a reasonable man would do or the doing something which a reasonable man would not do... It is really the absence of such care as it was the duty of the defendant to use. The care taken by a prudent man has always been the rule laid down – a regard to caution such as a man of ordinary prudence would observe [as cited from the 1942 decision of *Bishop versus McDonald*].
- Tribunal *Decision No. 1694/07* sets out the Tribunal's approach to the common law of negligence in part, as follows:
 The approach does not differ significantly from the approach taken by the courts and followed by previous Panels of the Tribunal. The decision-makers first determine whether or not an inference may be made, on the balance of probabilities, that the second employer was negligent. If the inference is made, resulting in a prima facie case of negligence, the second employer must rebut it with an alternative explanation of how the accident may have occurred without negligence on the second employer's part. This was the approach taken by the Court in the *Fontaine* case.
- *Decision No. 432/00* provides a useful summary of the elements of the tort of negligence. At paragraph 79, *Decision No. 432/00* provides:
 The elements of the tort of negligence, as set out in a number of Tribunal decisions are as follows:
 (a) There must be a relationship between the parties (i.e., between the injured worker and the second employer) creating a duty to exercise reasonable care.
 (b) The duty must be breached. That is, the conduct of the second employer must have fallen below the required standard of care.
 (c) The worker must have suffered damage (i.e., injury) and the injury must have been caused by the second employer's failure to conform to the standard of care.
 (d) The damage must not be too remote.

[13]

As indicated above, the onus is on the appellant employer – in this case G – to establish the negligence of either N and/or S. The question to be answered is whether either of those entities failed to do something that a reasonable person would do or did they do something which a reasonable person would not do.

[14]

Having had the opportunity to consider all the evidence before me including the submissions from the parties, I find that G has not established, on a balance of probabilities, that the injuries sustained by the worker on December 19, 2014 were caused by the negligence of either S and/or N. In reaching that conclusion, I have taken particular note of the following:

- The plaza where this accident occurred is a large facility, having in the area of 90 to 100 units. In order to address issues which might arise resulting from ice and snow, S had taken the step of entering into a contract with N in which the latter was responsible for, among other things, providing snow plowing and salting services.
- As noted in the correspondence from the manager of N, the plaza in question was their largest client for whom they provide snow plowing and salting services. The manager of N noted that prior to the incident under consideration here, there had never been complaints about their work on the premises.
- N has a worker – B – dedicated to the plaza in question. He usually attends there on a daily basis. N keeps a significant amount of snow clearing equipment on site and keeps two sets of logs – a truck log and a walkway maintenance log.
- As noted in the submissions from the manager of N, a review of the applicable logs showed that on December 18, 2014 (the day before the accident) one centimeter of snow had fallen. While this was not sufficient to require snow clearing, both B and the manager had attended the site to lay down salt. This included the manager “salting the back area with the truck salter”. The manager indicated that he was aware “there are a couple of places that puddle” in the back of the plaza and noted that B “monitors these and spot salts when necessary”.
- The information provided from N’s logs indicate that on the day of the accident, there was no snow that day and no major weather events.
- G submits that N was negligent in failing to address a “litter problem” involving the carpet store and submits that carpet debris blocked a drain leading to an accumulation of water that had become frozen. While the representative of N indicated that he had complained to S “numerous times” about the carpet store and the clutter making it difficult for them to clear and salt, the evidence provided by N indicates that they were aware there were “a couple of places that puddle and B monitors these and spot salts when necessary”. Even accepting, for the sake of argument, that S was aware of the potential for ice formation because of debris left by the carpet company (a contention which S denies) the available evidence establishes that N was aware of this situation and took reasonable steps to rectify it.
- G submits that S was negligent in failing to repair a damaged retaining wall which, in its view, allowed water to run into the plaza from a neighbouring property. Like the ARO however, I find that the evidence fails to establish, on a balance of probabilities, that issues with the retaining wall played any significant role in the worker’s slip and fall. In that regard, I note the submissions provided by S indicating that the retaining wall “was never intended to be water tight – rather, when originally installed, its intention was simply to slow the flow of rain water from the neighbouring property down during sudden, heavy downpours”.

- A “small gap” had been cut in the retaining wall by firefighters who attended on the property in March 2014 to respond to a fire at a mattress factory two properties to the west. According to these submissions, the small hole in the retaining wall was “70 feet north of the site of the accident”. As noted by the representative of S, there were no heavy rainstorms at that time of the year which “would lead to water traversing over the property line via the retaining wall, from the adjacent property to the west”. The representative advised that according to weather reporting “the last time it rained was 1.8 mm of rain on December 17, 2014” and it was incorrect “to suggest that ice formed in the shipping area based on the melting of one centimeter of snow (or run off from 1.8 mm of rain two days prior), particularly where a fully intact cement curb remained in place at the edge of the roadway.
- G also submits that S was negligent in not providing “better lighting” which “would have been helpful to reveal possible dangers to freezing ground water”. While I appreciate that visibility may have been improved with increased lighting, there is no evidence of substance before me establishing that the state of lighting at the plaza played a significant role in the worker’s slip and fall. As noted by the ARO, there had been no prior complaints about lighting in the area.

[15] In his submissions, Mr. Lam takes the position that what has occurred in this case is “victim blaming”. He submits that the accident employer should not be held accountable for injuries that were beyond their control. While I acknowledge that there may have been nothing that G could have done to prevent the worker from sustaining the injuries he did, the legislation and Board policy require that before the costs of a claim can be transferred to another employer, the party requesting the transfer of costs must establish, on a balance of probabilities, that the other parties were negligent, i.e., they did something which a reasonable person would not do or they failed to do something which a reasonable person would do.

[16] In this case, I find that G has not satisfied the necessary burden of proof. S was responsible for the management of a large plaza. In furtherance of its responsibilities, S contracted with N for the latter to provide snow clearing and salting services. My review of the evidence satisfies me that N was diligent in its snow clearing and salting work for S, its largest client. My review of the evidence satisfies me that N demonstrated a reasonable duty of care in dealing with the ice and snow in the period around the time of the compensable accident. They are not held to a standard of perfection.

[17] Like the ARO, I accept that it is unrealistic to expect a plaza of this type to be totally ice free during the winter months and with fluctuating temperature and weather, ice may appear at any time for a number of reasons. In my view, G has not established, on a balance of probabilities, that it was the negligence of N or S that led to the ice formation and the worker’s fall on December 19, 2014. As such, the request by G for a transfer of costs is denied.

DISPOSITION

[18] The appeal by G is denied.

DATED: February 28, 2020

SIGNED: R. Nairn